

Opinion of the Court

Whether an asserted federal right was clearly established at a particular time, so that a public official who allegedly violated the right has no qualified immunity from suit, presents a question of law, not one of “legal facts.” See *Mitchell v. Forsyth*, 472 U. S. 511, 528 (1985); *Harlow v. Fitzgerald*, 457 U. S., at 818. That question of law, like the generality of such questions, must be resolved *de novo* on appeal. See, e. g., *Pierce v. Underwood*, 487 U. S. 552, 558 (1988). A court engaging in review of a qualified immunity judgment should therefore use its “full knowledge of its own [and other relevant] precedents.” See *Davis*, 468 U. S., at 192, n. 9.

We leave it to the Court of Appeals to consider, in light of all relevant authority, including *Al-Azzawy*, whether the respondent officers are entitled to prevail on their qualified immunity defense. We express no opinion on that ultimate issue, nor do we consider whether the officers’ alternate plea of exigent circumstances is tenable.

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For the reasons stated, the judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.